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CASE #	CASE NAME	HEARING NAME
CVME2400054	ABDALLAH VS QUTAMI	DEMURRER ON 2 ND AMENDED CROSS-COMPLAINT

Tentative Ruling: SUSTAIN WITHOUT LEAVE.

On June 27, 2024, Plaintiffs Atallah Abdallah (“Abdallah”) and Norma Abdallah (“Norma”) (together “Plaintiffs”) filed a Complaint against Defendants Ahmad Fathi Qutami (“Qutami”), Indeed Properties, LLC (“Indeed”), Yasmeen Qutami (“Yasmeen”), Mark Robert Denning (“Denning”), and Philip Paul Percival (“Percival”) (together “Defendants”) for: (1) quiet title; (2) breach of contract; (3) fraud; (4) conspiracy to commit fraud; (5) slander of title; (6) cancellation of instruments; (7) theft of corporate asset; (8) breach of fiduciary duty; (9) aiding and abetting a breach of fiduciary duty. In the Complaint, Plaintiffs allege that Qutami wrongfully took two properties from them, one located in Riverside, California and one located in San Bernardino, California, and conspired with the other Defendants to transfer the properties to Indeed.

On September 30, 2024, Qutami, indeed, and Yasmeen filed an Answer to the Complaint. The same day, Plaintiffs dismissed the Complaint as to Denning and Percival. On January 17, 2025, following Plaintiffs’ demurrer to Defendants’ Answer, Qutami, Yasmeen, and Indeed filed a First Amended Answer to the Complaint. On January 31, 2025, Cross-Complainants Qutami, Yasmeen, and Indeed (together “Cross-Complainants”) filed a Cross-Complaint against Abdallah, Norma, and Ahmed Baroud (“Baroud”)(together “Cross-Defendants”) for: (1) breach of written contract (against Abdallah and Norma); (2) fraud (against Abdallah and Norma); (3) declaratory relief (against Abdallah and Norma); (4) unjust enrichment (against Abdallah and Norma); (5) goods and services rendered (against Abdallah and Baroud); and (6) breach of the covenant of good faith and fair dealing (against all Cross-Defendants). On June 12, 2025, the Court sustained Baroud’s demurrer to the 5th and 6th causes of action of the Cross-Complaint.

On July 14, 2025, Cross-Complainants filed a First Amended Cross-Complaint (“FACC”) against Cross-Defendants for: (1) breach of written contract (against Abdallah and Norma); (2) fraud (against Abdallah and Norma); (3) declaratory relief (against Abdallah and Norma); (4) unjust enrichment (against Abdallah and Norma); (5) goods and services rendered (against Abdallah and Baroud); (6) breach of the covenant of good faith and fair dealing (against all Cross-Defendants); and (7) fraud (against all Cross-Defendants). On December 30, 2025, the Court sustained Norma’s demurrer in its entirety, with leave to amend; sustained Baroud’s demurrer to the 6th (breach of the covenant of good faith and fair dealing) and 7th (fraud) causes of action with leave to amend; and sustained his demurrer to the 5th (goods and services rendered) cause of action without leave to amend. At the hearing, the parties stipulated sustaining Abdallah’s upcoming demurrer with leave to amend.

On January 29, 2026, Cross-Complainants filed a Second Amended Cross-Complaint (“SACC”) against Cross-Defendants asserting the same causes of action. In the SACC, Cross-Complainants allege that over the years, Abdallah hired Qutami to assist him in selling various commercial buildings and businesses, and on multiple occasions, Abdallah sold the buildings/businesses behind Qutami’s back after a deal was made to avoid

paying Qutami's commission. (SACC at ¶¶ 7-10, 18-19, 28-29, 35.) Qutami also helped Abdallah and Norma with a 1031 purchase by putting their name on the title to two properties on Olive Road in Riverside, even though Qutami and Abdallah were partners in developing the properties. (SACC at ¶¶ 12-17.) In 2017, Abdallah decided that he wanted to sell the Olive Road properties and agreed to pay Qutami a 10% commission on the sale. (SACC at ¶ 17.) In September 2017, Qutami and Abdallah agreed to develop part of the properties and then sell them (the "Winchester Project") and entered into a 50/50 partnership agreement regarding this Project. (SACC at ¶¶ 20-22, Ex. A.) In 2019, they entered another development project in Victorville, California, but Abdallah failed to provide the agreed upon financing. (SACC at ¶ 23-25, 27.) In 2021, Qutami confronted Abdallah about his breaches of various agreements, and Abdallah agreed to sign over the Victorville property to Qutami in compensation for the money Abdallah owed him. (SACC at ¶ 31.) Also in 2021, Abdallah and Baroud asked Qutami to be the agent for selling "Red Tomatoes," a business owned by Abdallah and Baroud. (SACC at ¶¶ 33-35.) However, after Qutami found a buyer for the business for \$2.2 million, Abdallah and Baroud defrauded him out of his commission by Baroud contacting the buyer, who had already signed the agreement, and selling the business to him directly. (SACC at ¶¶ 35-36.) In 2022, Abdallah and Norma entered into a settlement agreement with Qutami to resolve all of Abdallah's misconduct, pursuant to which Abdallah and Norma agreed to transfer title to the Winchester Project to Qutami. (SACC at ¶¶ 40-41, Ex. B.) Although Norma did not sign the settlement agreement, she executed the grant deed transferring the Winchester Project; she was married to Abdallah and all of his transactions benefited the marital community; she operated as a straw person, putting her name on the title to property to keep it out of Abdallah's name for tax purposes; she knew of the relationship between Abdallah and Qutami, and benefitted from it; and she ratified the settlement agreement by signing the grant deed. (SACC at ¶¶ 41-48.)

Norma demurs the entire FACC on the grounds that none of the causes of action state a claim against her. She argues that the settlement agreement that the 1st, 2nd, 3rd, and 6th cause of action are based on is not signed by her, and there are no allegations showing she assented to its terms. She also argues that there are no allegations regarding any misrepresentations by her to Cross-Complainants, so the fraud causes of action (the 2nd and 7th) fail, and unjust enrichment is not an independent cause of action.

In their opposition, Cross-Complainants argue that although Norma didn't sign the settlement agreement, she executed a grant deed conveying interests required by the agreement, and documents signed at the same time regarding the same matter are to be taken together. They also argue that Norma benefited from the partnership and the properties, so she ratified the agreement. Finally, they argue that fraud is pled with specificity and unjust enrichment is a proper cause of action.

In reply, Norma mainly reiterates her arguments from the demurrer.

In the SACC, Cross-Complainants assert causes of action against Norma for breach of written contract (1st), declaratory relief (3rd), and breach of the covenant of good faith and fair dealing (6th). Each of these causes of action are based on the alleged breach of a settlement agreement between Abdallah and Qutami that is attached to the SACC as Ex. B. (See, SACC at ¶¶ 53-58, 67-70, 90, Ex. B.) However, as Cross-Complainants acknowledge, Norma is not a party to this settlement agreement. In order to bind her, they

allege and argue that she is bound by the agreement because she executed a grant deed for the Winchester Project that was required by the agreement, and because she benefitted from the partnership between Qutami and Abdallah.¹ (SACC at ¶¶ 41-48, 55.) However, the settlement agreement attached to Ex. B does not require (or even reference) the transfer of the Winchester Project; it is signed only by Abdallah; and there are no allegations that provide a basis for binding Norma to an agreement she did not sign. As Norma is not a party to the agreement that is the basis for the 1st, 3rd, and 6th causes of action, she cannot be held liable for any breach of that agreement. Accordingly, her demurrer to these causes of action should be sustained.

Cross-Complainants have already been given multiple opportunities to amend their cross-complaint to assert a valid cause of action against Norma and have been unable to do so. They have provided no evidence or argument showing there is a “a reasonable possibility that the defect can be cured by amendment,” so the demurrer should be sustained without leave to amend. (See, *Silva v. Block* (1996) 49 Cal.App.4th 345, 349; *T.H. v. Novartis Pharmaceuticals Corp.* (2017) 4 Cal.5th 145, 162; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 [the onus is on the plaintiff to articulate the “specifi[c] ways” to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend “only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.”].)

Cross-Complainants also assert a cause of action for unjust enrichment against Norma. There is currently a split of authority as to whether unjust enrichment is a cause of action. (*Melchior v. New Line Productions, Inc.* (2003) 106 Cal.App.4th 779, 793 (unjust enrichment is a remedy); *Lectrodryer v. SeoulBank* (2000) 77 Cal.App.4th 723, 726 (unjust enrichment is a claim).) One court has noted that this is merely academic, because unjust enrichment is synonymous with restitution. (*O’Grady v. Merchant Exchange Productions, Inc.* (2019) 41 Cal.App.5th 771, 791.) The elements are: (1) receipt of a benefit; (2) unjust or wrongful retention of the benefit; and (3) at the expense of another. (*Lectrodryer, supra*, 77 Cal.App.4th at 726.) “[A]s a matter of law, a quasi- contract action for unjust enrichment does not lie where, as here, express binding agreements exist and define the parties’ rights.” (*California Medical Ass’n, Inc. v. Aetna U.S. Healthcare of California, Inc.* (2001) 94 Cal.App.4th 151, 172.) While Cross-Complainants do not specifically reference the settlement agreement in this cause of action, it appears to be the basis. Specifically, Cross-Complainants allege that Cross-Defendants have been enriched due to Qutami’s work and failed to fulfill their obligations related to that work, while elsewhere alleging that Cross-Defendants agreed to fulfill those obligations in the settlement agreement. (See, SACC at ¶¶ 40-41, 72-76.) Since Cross-Complainants asserted an express contract, they cannot also assert a quasi-contract. Additionally, they have alleged no facts showing Norma entered into any agreements, or requested any services, from Qutami. Accordingly, her demurrer to this cause of action should also be sustained without leave to amend.

Finally, Cross-Complainants assert two fraud causes of action against Norma. (See, SACC at ¶¶ 60-65, 97-101.) The elements of fraud are (1) misrepresentation of a material fact (consisting of a false representation, concealment, or non-disclosure); (2) knowledge

¹ They also argue that she is liable under community property law, but they provide no legal authority for the proposition that a spouse can be liable for the acts of her husband simply because they share property.

of the falsity (i.e., scienter); (3) intent to deceive and induce reliance; (4) justifiable and actual reliance on the misrepresentation; and (5) resulting damage. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445; *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 72-73.) Fraud actions are subject to strict requirements of particularity in pleading. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made." (*Stansfield, supra*, 220 Cal.App.3d at 73.) A plaintiff must allege what was said, by whom, in what manner (i.e. oral or in writing), when, and, in the case of a corporate defendant, under what authority to bind the corporation. (See, *Goldrich v. Natural Y Surgical Specialties, Inc.* (1994) 25 Cal.App.4th 772, 782.) The rationale for this "strict requirement of pleading" is not merely notice to the defendant, but because "allegations of fraud involve a serious attack on character, and fairness to the defendant demands that he should receive the fullest possible details of the charge in order to prepare his defense." (*Committee on Children's Television, supra*, 35 Cal.3d 197, 216.)

Nowhere in either fraud cause of action does Cross-Complainants allege any misrepresentations specifically made by Norma, when she made such misrepresentations, or whether they were oral or in writing. While they allege in the 2nd cause of action that Norma made certain misrepresentations and concealments in the settlement agreement [SACC at ¶ 60], as discussed above, there is no evidence Norma was a party to the settlement agreement or made any of the representations contained therein. In the 7th cause of action, Cross-Complainants allege only that Norma knew the property and partnership interests conveyed pursuant to the settlement agreement were subject to Qutami's ownership rights and she benefited from his services. (SACC at ¶ 99.) Accordingly, none of these allegations support fraud causes of action against Norma.

2.

CASE #	CASE NAME	HEARING NAME
CVME2403788	BANUET VS MESKIMEN	DEMURRER ON 2 ND AMENDED COMPLAINT

Tentative Ruling: Notice of non-opposition filed. Sustained with 30 days leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVME2403788	BANUET VS MESKIMEN	MOTION TO STRIKE

Tentative Ruling: Notice of non-opposition filed. Granted.

4.

CASE #	CASE NAME	HEARING NAME
CVME2404820	LICONA VS LONGS DRUG STORES CALIFORNIA, L.L.C.	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: CONTINUE TO 09/23/2026 SO AS TO ALLOW PLAINTIFFS TO SUBMIT AN OPPOSITION AND DEFENDANTS TO SUBMIT A REPLY ON THE MERITS.